

The Baggage (Transit to Customs Stations) Regulations, 1967

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The Baggage (Transit to Customs Stations) Regulations, 1967

UNION OF INDIA

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The Baggage (Transit to Customs Stations) Regulations, 1967

RULE THE-BAGGAGE-TRANSIT-TO-CUSTOMS-STATIONS-REGULATIONS-1967 of 1967

Published on 3 June 1967

Commenced on 3 June 1967

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[Note: The original publication document is not available and this content could not be verified.]

The Baggage (Transit to Customs Stations) Regulations, 1967

Published vide M.F. (D.R.I.) Notification, No. 61 Cus. dated 3rd June, 1967

M.F. (D.R.I.) Notification, No. 61 Cus. dated 3rd June, 1967. - In exercise of the powers conferred by Section 81 of the Customs Act, 1962 (52 of 1962) and in supersession of its Notification No. 135-Cus., dated 25th May, 1963, the Central Board of Excise and Customs hereby makes the following regulations for the transit of unaccompanied baggage from the customs station of arrival at Bombay, Delhi, Calcutta, [Madras, Bangalore]

[Substituted by M.F. (D.R.) Notification. No. 246/85-Cus. (N.T.), dated 2nd August, 1985.]

, [Trivandrum,]

[Substituted by G.S.R. 197 (E), dated 12th February, 1986, for the words 'or Trivandrum'.]

Hyderabad [Cochin, Ahmedabad, Goa, Calicut, Coimbatore, Lucknow or Amritsar]

[Substituted by Notification No. G.S.R. 481(E), dated 8.7.2002 (w.e.f. 3.6.1967)]

to any other of the aforesaid customs stations, namely :

1.

Short title.

- These regulations may be called the Baggage (Transit to Customs Stations) Regulations, 1967.

2.

Conditions for allowing transit.

- Where the unaccompanied baggage or any passenger arrives at the customs station at Bombay, Delhi, Calcutta, [Madras, Bangalore]

[Substituted by M.F. (D.R.) Notification. No. 246/85-Cus. (N.T.), dated 2nd August, 1985.]

, [Trivandrum,]

[Substituted by G.S.R. 197 (E), dated 12th February, 1986, for the words 'or Trivandrum'.]

Hyderabad [Cochin, Ahmedabad, Goa, Calicut, Coimbatore, Lucknow or Amritsar]

[Substituted by Notification No. G.S.R. 481(E), dated 8.7.2002 (w.e.f. 3.6.1967)]

and the passenger desires that the said baggage may be cleared at any of the aforesaid customs stations other than the customs station at which the baggage has arrived, then on a request made in this behalf by the passenger, such baggage may be permitted to be transported to the customs station at which the passenger desires the same to be cleared, by [air, a passenger train or trucks]

[Substituted words "air or by a passenger train" by Notification No. G.S.R. 481(E), dated 8.7.2002 (w.e.f. 3.6.1967)]

, if -

(a)

all arrangements are made by the passenger or his agent for the transport of such baggage from the customs station of arrival to the customs station at which he desires to have such baggage cleared, for its booking to that station and for its transport to the customs house in the place at which the station is located;

(b)

the baggage remains under the supervision of an officer of customs deputed for the purpose except when it is under the custody of the airline or the railway authorities, and the passenger pays for the services of the officer so deputed; and

(c)

in the case of goods to be transported by rail, such of the goods as can be insured with the railways are so insured.

(d)

[In the case of goods to be transported by trucks, the carrier shall be responsible for carriage of goods to destination Customs in containerised truck after sealing or the same by one time bottle seal by Customs and on execution of bond and security to the satisfaction of the Commissioner of Customs at the originating Airport/ Air-cargo Complex.]

[Inserted by Notification No. G.S.R. 481(E), dated 8.7.2002 (w.e.f. 3.6.1967)]

3.

Special provision.

- Notwithstanding anything contained in regulations, the [Commissioner of Customs]

[Substituted by the Finance Act, 1995 (22 of 1995), Section 50, for the words 'Collector of Customs'.]

may, at the discretion, permit unaccompanied baggage to be transported for clearance to the customs station at which the passenger desires to have the same cleared by goods train, if -

(a)

the goods are insured; and

(b)

(i)

the passenger or his agent satisfies the proper officer that the goods would not be accepted for being carried in a passenger train having regard to the size and weight thereof; or

(ii)

the transport by passenger train would put the passenger to undue financial strain;

Provided that the [Commissioner of Customs]

[Substituted by the Finance Act, 1995 (22 of 1995), Section 50, for the words 'Collector of Customs'.]

shall, whenever Quick Transit Service is available, allow the transport of goods only through that service.

Explanation. - "Quick Transit Service" means the special scheme of transit of goods consignments over the Indian

Railway System in which the delivery of goods at destination is guaranteed within the stipulated time.

4.

[Payment of fee. - A fee of [twenty rupees]

[Substituted by Notification No. 229/84, Cus., dated 31st August, 1984.]

in respect of each application for transshipment of goods shall be charged at all customs station.]

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